

struct and come to terms with their history be truncated by an analysis of Presidential privilege that focuses only on the needs of the present.¹⁶ Congress can legitimately act to rectify the hit-or-miss approach that has characterized past attempts to protect these substantial interests by entrusting the materials to expert handling by trusted and disinterested professionals.

Other substantial public interests that led Congress to seek to preserve appellant's materials were the desire to restore public confidence in our political processes by preserving the materials as a source for facilitating a full airing of the events leading to appellant's resignation, and Congress' need to understand how those political processes had in fact operated in order to gauge the necessity for remedial legislation. Thus by preserving these materials, the Act may be thought to aid the legislative process and thus to be within the scope of Congress' broad investigative power, see, *e. g.*, *Eastland v. United States Servicemen's Fund*, 421 U. S. 491 (1975). And, of course, the Congress repeatedly referred to the importance of the materials to the Judiciary in the event that they shed light upon issues in civil or criminal litigation, a social

mental actions relating to current governmental problems. See 408 F. Supp., at 351-352. Although it appears that most such requests have been granted, Congress could legitimately conclude that the situation was unstable and ripe for change. It is clear from the face of the Act that making the materials available for the ongoing conduct of Presidential policy was at least one of the objectives of the Act. See § 102 (d).

¹⁶ S. Rep. No. 93-1181, pp. 1, 3 (1974); H. R. Rep. No. 93-1507, pp. 2-3, 8 (1974); Hearing on GSA Regulations Implementing Presidential Recordings and Materials Preservation Act before the Senate Committee on Government Operations, 94th Cong., 1st Sess., 256 (1975); 120 Cong. Rec. 31549-31550 (1974) (remarks of Sen. Nelson); *id.*, at 33850-33851; *id.*, at 33863 (remarks of Sen. Ervin); *id.*, at 33874-33875 (remarks of Sen. Huddleston); *id.*, at 33875-33876 (remarks of Sen. Ribicoff); *id.*, at 33876 (remarks of Sen. Muskie); *id.*, at 33964-33965 (remarks of Sen. Nelson); *id.*, at 37900-37901 (remarks of Rep. Brademas). See also §§ 101 (b) (1), 104 (a) (7) of the Act.